

Plaintiff's Motion to Compel Further Responses to Requests for Production of Documents is **GRANTED**, subject to the limitations detailed above. Defendant shall serve further verified, code-compliant responses, without objection except as to specifically identified privileged material, to Special Interrogatories, Set One as detailed above within 20 days of this order. Sanctions of \$3,500 are imposed in favor of Plaintiff Fritchman against Mondelez Global, LLC. A proposed order was lodged and will be modified.

HILL, ET AL. VS. NELSON, ET AL.

CASE NUMBER: 25CV-0208635

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued to Plaintiff Kathleen Hill and her counsel on June 2, 2026 for their failure to timely serve pleadings on the defendants as required by CRC 3.110(b). The Complaint was filed on September 8, 2025. "The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint." CRC 3.110(b). It has now been over ten months and there is no Proof of Service of Summons on file. No written response to the Order to Show Cause was filed.

This matter first came on for hearing on July 13, 2026. Plaintiffs' counsel appeared and requested a continuance. The Court continued the hearing to today's date and directed counsel to file a declaration prior to today's hearing. No declaration has been filed. No proof of service of summons is on file.

With no sufficient excuse for the delay, the Court will impose sanctions in the amount of \$250 against Plaintiff and her counsel. The clerk is directed to prepare a separate Order of Sanctions. The Court will also issue an Order to Show Cause Re: Dismissal for failure to timely serve pursuant to CRC 3.110(b) and failure to timely prosecute. Hearing on the Order to Show Cause Re: Dismissal will be **Monday, October 19, 2026, at 8:30 a.m. in Department 64.** The clerk is directed to issue an Order to Show Cause Re: Dismissal.

KUNS, ET AL. VS. ESTES-KING, ET AL.

CASE NUMBER: 26CV-0210292

Tentative Ruling Motion for Preliminary Injunction: Plaintiffs Ronald and Tove Kuns move for a preliminary injunction against Defendants Linda Estes-King, Mark Teal, and The Roles Company, Inc. pending trial and entry of final judgment in this action. Specifically, Plaintiffs seek to enjoin Defendant from interfering with Plaintiffs' use of a roadway and bridge and to require Defendants to unlock a gate which currently obstructs passage over what Plaintiffs refer to as the "Prescriptive Area" as detailed in the Verified Complaint.

Merits: California Code of Civil Procedure section 526(a) provides an injunction may be granted, *inter alia*, when it appears by the complaint that the plaintiff is entitled to the relief demanded, and the relief, or any part thereof, consists in restraining the commission or continuance of the act complained of, either for a limited period or perpetually, or when it appears by the complaint or affidavits that the commission or continuance of some act during the litigation would produce waste, or great or irreparable injury, to a party to the action. In considering whether to issue a preliminary injunction, a court evaluates two interrelated factors: the likelihood plaintiff will prevail on the merits at trial and the interim harm to plaintiff or defendant if the court denies or grants the preliminary injunction. (*Continental Baking Co. v. Katz* (1968) 68 Cal.2d 512, 528.)

Plaintiff carries the burden of proof and persuasion on these issues. (*O'Connell v. Superior Court* (2006) 141 Cal.App.4th 1452, 1481.) *Drakes Bay Oyster Co. v. California Coastal Com.* (2016) 4 Cal.App.5th 1165, 1171–72.

Plaintiff has the burden to establish a reasonable probability that Plaintiff will prevail on the merits at trial. *Robbins v. Superior Court* (1985) 38 Cal.3d 199, 206. Here, Plaintiff seeks 1) to quiet title for a prescriptive easement; 2) declaratory relief that Plaintiffs possess a prescriptive easement; 3) injunctive relief for access to the prescriptive easement; and 4) for damages for interference with their prescriptive easement.

To prevail on the merits, each of Plaintiffs' causes of action require the Court to find a prescriptive easement in favor of Plaintiffs over the Defendants' property. To establish a prescriptive easement over real property under California law, a claimant must prove that their use of the subject property has been: (1) open and notorious; (2) continuous and uninterrupted; (3) hostile and adverse to the true owner; (4) under a claim of right; and (5) maintained for the statutory period of five years. *Twin Peaks Land Co. v. Briggs*, 130 Cal. App. 3d 587, *Windsor Pacific LLC v. Samwood Co., Inc.*, 213 Cal. App. 4th 263, *Main Street Plaza v. Cartwright & Main, LLC*, 194 Cal. App. 4th 1044.

Plaintiff has met its burden to establish a reasonable probability of prevailing at trial on the merits by alleging each of the five elements required to establish a prescriptive easement in a Verified Complaint. Defendant has not opposed the motion or offered any contradictory evidence.

Next, Plaintiff has the burden to show that the interim harm that the Plaintiff is likely to sustain if the injunction were denied is greater than the harm that the Defendant is likely to suffer if the preliminary injunction were issued. Here again, Defendant has not opposed the Motion. The only evidence of harm before the Court is Plaintiff's verified allegation that the locked gate has prevented Plaintiff from transporting and managing cattle and other livestock on their property, as they (or their predecessors in interest) have done for at least the last five years. The Court finds the equities favor maintaining the status quo until the matter can be resolved through full litigation of the merits.

Undertaking: CCP § 529(a) provides that if the Court grants the injunction, it must require an undertaking. Plaintiff suggests a nominal \$1 undertaking. "On granting an injunction, the court or judge must require an undertaking on the part of the applicant to the effect that the applicant will pay to the party enjoined any damages, not exceeding an amount to be specified, the party may sustain by reason of the injunction, if the court finally decides that the applicant was not entitled to the injunction. Within five days after the service of the injunction, the person enjoined may object to the undertaking. If the court determines that the applicant's undertaking is insufficient and a sufficient undertaking is not filed within the time required by statute, the order granting the injunction must be dissolved."

The trial court fixes the amount of the undertaking based on its sound discretion, and its estimate must be grounded in reason. *ABBA Rubber Co. v. Seaquist* (1991) 235 Cal. App. 3d 1, *Oiye v. Fox* (2012) 211 Cal. App. 4th 1036. An enjoined party must make an evidentiary showing of its likely damages. *Id.* If the enjoined party fails to present evidence of potential damages in the event the injunction is determined to have been wrongfully issued, the court does not abuse its discretion by setting a nominal bond amount, such as \$1,000. *Id.* However, nominal bonds that are completely untethered to potential damages when evidence of harm exists do not satisfy the statutory

requirements. *Bring Back the Kern v. City of Bakersfield* (2025) 110 Cal. App. 5th 322.

Here, Defendant has not opposed the Motion and has presented no evidence of likely damages. Absent a showing of likely damages at the hearing, the Court intends to impose an undertaking of \$1,000 in order to satisfy the statutory requirement.

The Preliminary Injunction is **GRANTED**. Defendant is immediately enjoined from interfering with Plaintiff's use of the "Prescriptive Area" during the pendency of this action. Plaintiff is required to post an undertaking of \$1,000.00. The proposed order will be modified.

IN RE LIGHTSEY

CASE NUMBER: 26PB-0033501

CASE NUMBER: 26PB-0033503

CASE NUMBER: 26PB-0033502

Tentative Ruling on Three Petitions to Approve Minor Compromise: Elizabeth Lightsey seeks an order approving the compromise of claims on behalf of her minor daughters, Charrissa Lightsey, Makayla Lightsey, and Miya Lightsey. The Court approves Elizabeth Lightsey's Applications for Appointment of Guardian ad Litem for each minor.

California Rules of Court, Rule 7.950 states that a petition for court approval of a minor's compromise must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise. The Petition provides the required information. Considering the nature of the minors' injuries and full recovery, the Court is prepared to find that the settlement is in the best interest of the minors, if the voir dire process is completed to the Court's satisfaction.

The Court notes this is not an expedited petition brought on Judicial Council Form MC-350EX. See CRC Rule 7.950.5. Hearing is thus needed on the Petition before it can be approved. The person seeking approval of the settlement on behalf of the minor and the minor are required to appear at the hearing, unless good cause is presented for their non-appearance. CRC Rule 7.952. The Petitioner and minors are required to appear. Counsel will voir dire the Petitioner about the terms of the settlement, any other potential sources to increase the settlement amount, whether the minors have fully recovered and whether the Petitioner understands that once approved, the settlement is final and binding on the minors. The Petitions do not indicate where the blocked accounts will be opened. Counsel must provide this information at the time of the hearing.

Pending satisfactory voire dire, the Court intends to grant the Petition and set this matter for review for confirmation of deposit of the funds into a court blocked account. A copy of the Order to Deposit Funds in Blocked Account must be attached to the Acknowledgment and Receipt. An appearance by the Petitioner and the minors is necessary on today's calendar.